

that if it did not act with due care its actions would interfere with this relationship and cause plaintiff to lose in whole or in part the probable future economic benefit or advantage of the relationship; (3) the defendant was negligent; and (4) such negligence caused damage to plaintiff in that the relationship was actually interfered with or disrupted and plaintiff lost in whole or in part the economic benefits or advantage reasonably expected from the relationship.” (*Venhaus v. Shultz* (2007) 155 Cal.App.4th 1072, 1078.)

Plaintiff opposes the demurrer on the basis that she pleaded “an economic relationship with potential purchasers of the Subject Property and a reasonable probability of future economic benefit from selling it at fair market value (FAC 68-69).” (Opposition, 3:10-15.) This is insufficient to meet the second element of a “reasonable probability of an expectancy.” (*Youst v. Longo* (1987) 43 Cal.3d 64, 71-72.) “[T]he interference tort applies to interference with existing noncontractual relations which hold the promise of future economic advantage. In other words, it protects the expectation that the relationship eventually will yield the desired benefit, not necessarily the more speculative expectation that a potentially beneficial relationship will eventually arise.” (*Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 524.) The existence of a future buyer at a better price if plaintiff had been permitted to sell her own home, is purely hypothetical.

Accordingly, the demurrer to this cause of action is sustained.

D. Leave to Amend

The Court cannot readily see how plaintiff could be able to amend to rescue any of these causes of action. If plaintiff contests this tentative ruling to seek leave to amend, she must be prepared at the hearing to discuss in detail what amendments she contemplates making, why they will suffice, and why they haven’t been adduced before now.

5. 9:00 AM CASE NUMBER: C23-03266
CASE NAME: LINETTE LUJAN VS. WINDSOR ROSEWOOD CARE CENTER, LLC,
***HEARING ON MOTION IN RE: SET ASIDE ENTRIES OF DEFAULT**
FILED BY: ROSEWOOD CARE CENTER, LLC,
TENTATIVE RULING:

This motion was **stipulated**.

6. 9:00 AM CASE NUMBER: C24-00481
CASE NAME: STEVE STROOT VS. NATHAN SIMARRO
HEARING ON SUMMARY MOTION ADJUDICATION
FILED BY: SIMARRO, NATHAN
TENTATIVE RULING:

On the Court’s own motion, the hearing on this matter is **continued** until June 25 so that the late-provided usable video exhibit can be examined.

7. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ

***HEARING ON MOTION IN RE: TO CONSOLIDATE**

FILED BY: 1125 SIR FRANCIS DRAKE BOULEVARD OPERATING CO., LLC

TENTATIVE RULING:

This is one of two actions filed concerning defendants' care for a now-deceased patient. This is the first-filed, and the second is pending in Marin County. Defendants 1125 Sir Francis Drake Boulevard and Vibra Healthcare move to transfer the Marin action here and consolidate it with the existing Contra Costa action. The motion is unopposed, and it appears to be called for. (Indeed, the Court observes that if they remained separate, it is likely that the first case to come to judgment could operate as res judicata as to the other one.)

However, as a matter of caution, the Court requests **counsel to appear** (Zoom okay) to confirm whether there are any additional parties involved, and whether the Marin court has been apprised of this proposal.

8. 9:00 AM CASE NUMBER: C24-01973
CASE NAME: DAVID WONG VS. JAFFE AND ASHER LLP
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: JAFFE AND ASHER LLP

TENTATIVE RULING:

Defendant Jaffe & Asher LLP's Demurrer to Plaintiff David Wong's Second Amended Complaint is **overruled**.

Background

Plaintiff David Wong filed this action in July 2024. The operative pleading is the Second Amended Complaint (SAC), filed October 15, 2025. The SAC asserts a cause of action against Jaffe & Asher LLP (J&A) for false imprisonment arising out of a service-of-process incident on March 3, 2024.

The court has previously sustained demurrers to earlier iterations of the false imprisonment claim. J&A demurred to the original complaint, and the court sustained that demurrer on February 10, 2025, finding that plaintiff had alleged only that his car was blocked by the process server's vehicle and had not alleged facts sufficient to show he was physically restrained or that he believed, based on words or conduct, that he would not be allowed to leave. Plaintiff filed the First Amended Complaint on February 24, 2025. J&A demurred to the FAC and the court sustained the demurrer with leave to amend.

Plaintiff filed the SAC on October 15, 2025. J&A now demurs to the false imprisonment cause of action on the ground that the SAC fails to state facts sufficient to constitute a cause of action against it.

J&A makes two arguments. First, J&A argues that the SAC does not allege false imprisonment at all. J&A argues that the new allegations in the SAC regarding physical blocking of the car doors and a verbal instruction to stay are inconsistent with prior pleadings and should be disregarded as sham. J&A further argues that even accepting those allegations, plaintiff was free to leave on foot and the